

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLIHA

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF BERNARD R. BOUCHARD, Ph.D., LPC, LICENSE NO. 20,

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Bernard R. Bouchard, Ph.D., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.

2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on August 4, 1989. Respondent was issued license number 20. Respondent has been licensed to practice professional counseling since that date and is so licensed at this time.

3. On or about October 27, 1994 the Board received a complaint against respondent alleging that he practiced below generally accepted standards of practice.

4. Following an investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for action to assure that respondent's practice of psychotherapy in Colorado will fully conform with all aspects of the Colorado Mental Health Statute.

5. Respondent understands that he has the right to a hearing with respect to the complaint filed against him. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to a hearing; relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that he has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and

knowingly entering into this stipulation and order, he waives his right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent freely and voluntarily enters into this agreement.

7. Respondent is not currently practicing professional counseling or psychotherapy in the state of Colorado. If and when respondent seeks to practice professional counseling or psychotherapy in the state of Colorado in the future he shall notify the Colorado State Grievance Board prior to any practice of professional counseling or psychotherapy. He shall not practice professional counseling and psychotherapy without first having a practice evaluation and entering into an agreement with the Colorado State Grievance Board for practice monitoring, possibly therapy monitoring, and professional education. This agreement will provide terms under which respondent can practice professional counseling and psychotherapy in Colorado.

8. All obligations of this stipulation and order will apply at any time respondent seeks to practice professional counseling and psychotherapy in the state of Colorado.

9. As used in this stipulation and order, the terms "professional counseling", "practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as the term "professional counseling" as set out in C.R.S. §12-43-601(4); the terms "psychotherapy", "practice of psychotherapy", "psychotherapy practice", and "engaged in the practice of psychotherapy" shall have the same meaning and scope as the term "psychotherapy" defined in C.R.S. §12-43-201(9).

10. This stipulation and order shall take effect on acceptance and signature by the Board.

11. This stipulation and order is a public record.


BERNARD R. BOUCHARD, Ph.D., LPC
Respondent

Subscribed and sworn to before me in the County of Pueblo, State of Colo., this 18 day of February 1997.

Dalmon A. Jordan
NOTARY PUBLIC

My Commission Expires:

Jul 15, 2000

ACCEPTED, SIGNED, AND ORDERED this 25th day of February,
1997.

COLORADO STATE GRIEVANCE BOARD

Daniel R. Robinson

DANIEL R. ROBINSON
Board Chair

Dated: February 25, 1997

APPROVED AS TO FORM

FOR THE ATTORNEY GENERAL:

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